DINGAANI THOMAS MBONDIYA

Versus

CHRISTON CHIRIDZA

IN THE HIGH COURT OF ZIMBABWE
DUBE-ANDA J
HARARE 15,16 July 2025; 4, 5, 8, 12, 15 September 2025; 9 October 2025 & 7 June 2026

Civil trial

Mrs. M. Dube-Tachiona for the plaintiff
Ms. N. C. Zhou for the defendant

DUBE-BANDA J:

[1] By summons dated 22 March 2018, the plaintiff instituted an action against the defendant for payment of USD$20,000.00 (USD$10,000.00 for loss of *contumelia* (*sic*) and USD$10,000.00 for loss of consortium) as damages for adultery, and costs of suit on an attorney and client scale. The action is defended.

The pleadings

[2] The action is founded on allegations that the plaintiff got married to Nyashadzashe Munyaradzi Maphosa (Ms Maphosa) on 2 February 2018 in terms of the Marriage Act [*Chapter 5:11*], now Marriages Act [*Chapter* 5:17] (the Marriage Act), and the marriage subsists. It was pleaded that on diverse occasions, in Zimbabwe and at Ms Maphosa's workplace, the defendant engaged in extramarital sexual intercourse with Ms. Maphosa. It was contended that the sexual intercourse between the defendant and Ms Maphosa interfered with the marriage relationship between the plaintiff and his wife, Ms Maphosa. It was pleaded further that a child was born between the defendant and Ms Maphosa, which led to the total collapse of the plaintiff's marriage. It was further pleaded that because of the publicly displayed extramarital affair between Ms Maphosa and the defendant, the plaintiff suffered damages. Under *contumelia* it was contended that the defendant conducted himself, as against the plaintiff, in a manner that was scornful and insulting; insolent and reproachful;

and deceitful and contemptuous. As a result of the defendant's conduct, the plaintiff was exposed to ridicule and scorn from his family and Ms Maphosa's family. And had his dignity and self-respect impaired in the eyes of his wife's employees, and had his mental integrity impaired by the defendant's insults and boastful utterances about the affair with Ms Maphosa. Under *consortium* it was contended that the plaintiff lost affection and society of his wife, his family was shaken and disintegrated, which led to an acrimonious divorce. It was sought that the claim succeeds with costs on a legal practitioner and client scale.

[3] In the plea, it was contended that the defendant and Ms Maphosa are business partners and longtime lovers, and that the two have a child who was conceived before the alleged marriage. It was pleaded that the defendant had no knowledge of the marriage between the plaintiff and Ms. Maphosa, and that he genuinely believed that Ms Maphosa was a single woman. It was denied that there were any public displays and scandals associated with the relationship between the defendant and Ms Maphosa. It was further denied that the defendant conducted himself towards the plaintiff in a scornful, insulting, insolent, reproachful, deceitful, or contemptuous manner, as he did not know of the existence of the marriage. The defendant denied that he was responsible for the breakdown of the marriage relationship between the plaintiff and Ms Maphosa. The defendant sought that the claim be dismissed with costs on a higher scale.

[4] In the replication, it was pleaded that the defendant had knowledge of the marriage between the plaintiff and Ms Maphosa. Further, that it was the defendant's wife who informed the plaintiff of the extramarital relationship and pleaded with the plaintiff to rebuke his wife. It was contended further that the plaintiff confronted the defendant to stop the relationship, but it did not stop. The plaintiff did not know that the first-born child was not his biological son until he got the deoxyribonucleic acid (DNA) results. It was contended that the breakdown of the marriage between the plaintiff and Ms Maphosa was caused by the extramarital sexual intercourse between the latter and the defendant. The plaintiff persisted with his claim and sought that it succeeds.

[5] At a pretrial conference held before a judge, the issues for trial were identified and delineated as the following:

i. Whether or not the defendant knew that Nyashadzashe Mazuva (Ms Maphosa) was married to the plaintiff from 2 February 2018.
ii. If it is proved that the defendant knew that Nyashadzashe Mazuva (Ms Maphosa) was married to the plaintiff, the quantum of damages the defendant is liable to pay to the plaintiff.
iii. Whether or not the defendant should pay costs on an attorney-client scale.

The legal principles in evaluation of evidence

[6] The *onus* or burden of proof for the three issues for trial is on the plaintiff. It is for the plaintiff to adduce evidence that is sufficient to persuade the court that his claim must succeed. See *Pillay* v *Krishma* 1946 AD 946 at 952-3.

[7] The correct approach to be adopted in analysing and assessing the evidence in a civil case is as follows: where there are two mutually destructive versions, as in the present case, in order to succeed, the plaintiff should satisfy the court on a preponderance of probabilities that his version is true and accurate and therefore acceptable, and that the other version advanced by the defendant is false and falls to be rejected. See *National Employers' General Insurance Co Ltd* v *Jagers* 1984 (4) SA 437 (ECD) at 440D-441A.

[8] In determining the veracity of the evidence, the court should weigh and test the plaintiff's allegations against the general probabilities. As a result, evaluating a witness's credibility will inevitably involve taking the case's probabilities into account. If the balance of probabilities favours the plaintiff, then the court should accept his version as being probably true. If, however, the probabilities are evenly balanced in the sense that they do not favour the plaintiff's case any more than they do the defendant's, the plaintiff can only succeed if the court nevertheless believes him and is satisfied that his evidence is true and that the defendant's version is false. It is impermissible to evaluate the evidence in a compartmentalised approach; the law requires that evidence be evaluated as a whole.

[9] With these legal principles in mind, I now turn to consider whether evidence and the probabilities of this case.

Common cause facts

[10] It is common cause or not seriously disputed that in December 2017, the plaintiff and Ms. Maphosa married customarily, and on 2 February 2018, the two married in terms of the Marriage Act, and the marriage subsists. There are three minor children in the family, however the DNA test results have shown that the first-born child is not the biological child of the plaintiff. The defendant and Ms Maphosa were in a love relationship from around 2012. At the time the plaintiff and Ms Maphosa contracted their marriage, she was already pregnant with the defendant's child. The defendant is the biological father of Ms Maphosa's first child, who was born on 9 August 2018. The defendant and Ms. Maphosa are business partners and long-time lovers. The child was born approximately six months into the marriage between the plaintiff and Ms Maphosa. The defendant and Ms Maphosa continued with their extramarital relationship after the solemnization of the marriage between the plaintiff and Ms. Maphosa. The factual dispute turns on whether, at the time the two continued with their extramarital relationship, the defendant had knowledge that Ms Maphosa was married to the plaintiff, and whether the relationship terminated when the defendant was served with summons in this case.

[11] I now turn to the issues for trial as delineated in the pre-trial conference minute and bearing in mind the seat of the *onus*.

Whether or not the defendant knew that Ms Maphosa was married to the plaintiff from 2 February 2018

[12] The first issue for determination is whether the defendant had knowledge that Ms Maphosa was married to the plaintiff. This is so because the law states that a party is only liable for adultery damages if he or she knew at the time of sexual intercourse that the sexual partner was married. See *Misho* v *Sithole* 1992 (2) ZLR 291 (SC); *Tanyanyiwa v Huchu* 2014 (2) ZLR 758 (H). In determining this issue, and for the purposes of context, I propose to briefly summarize the evidence of the witnesses that has a bearing on this issue.

[13] The plaintiff testified that he is married in terms of the Marriage Act and the marriage still subsists, although there is a divorce matter that is pending finalization. His evidence was that sometime in 2021, the defendant's wife informed him that the defendant and Ms

Maphosa were in an extramarital relationship. The defendant's wife was not called as a witness, which renders the evidence hearsay. However, in terms of s 27 of the Civil Evidence Act [*Chapter 8:01*], it is admissible hearsay evidence; it remains a matter of weight. See *Hiltunen* v *Hiltunen* 2008 (2) ZLR 296 (H); *Ndebele* v *Mpofu & Ors* 2021 (2) ZLR 54 (H). The plaintiff's evidence was that when he went to his wife's workplace, he found the defendant and his wife in a compromising position. Ms Maphosa was partially naked, and she tried to block him from entering the building. The defendant went to hide inside a toilet. Ms Maphosa informed the plaintiff that the defendant was a client. On being asked who he was, the defendant said he was a business partner and refused to disclose his name. Ms Maphosa started to insult the plaintiff using obscene language and thereafter called a security guard who removed the plaintiff from the premises. The plaintiff testified that the marriage started going through severe turbulence, leading to him moving out of the matrimonial home. He at some point returned home hoping to reconcile with his wife, but no reconciliation was achieved. He would see her in possession of condoms, and he noticed that she was suffering from a sexually transmitted infection (STI). He also saw nude pictures of the defendant and Ms Maphosa on a cellphone. As the matrimonial fires were raging at his home, he did a DNA test on the children, and the results showed that he was not the biological father of the firstborn child.

[14] The plaintiff further testified that he tried to talk to the defendant, but he became uncooperative and rude. On another occasion, he met the defendant and Ms Maphosa at a place called Colcom in Harare. He tried to talk to the defendant to stop the relationship with Ms Maphosa, but he continued being rude. Almost breaking down, he told the court how Ms Maphosa and her legal practitioners coerced him to remove his name from the birth certificate of the first-born child, whom he said he loved so much and had always considered him his biological son. He said he was embarrassed when the first-born child, whom he thought was his, had his name changed to Chiridza, the defendant's name. This embarrassed him among his family and friends, even at the child's school because he loved this child and raised him, believing he was his child. He said the defendant had not apologized, and the two,

i.e., Ms Maphosa and the defendant, were now staying together. He said he was shattered and broken to hear the defendant saying Ms Maphosa was his long-time lover.

[15] The plaintiff emphasized that the defendant knew that Ms Maphosa was a married woman. This is because he would send him messages advising him to stop his extramarital relationship with Ms Maphosa to no avail. However, the defendant did not stop; he continued with the relationship, sending messages and phoning Ms Maphosa. In 2022, he saw them together at restaurants and other places, including Colcom Head office.

[16] Under cross-examination, the plaintiff accepted that the first-born child was born approximately six months after his marriage to Ms Maphosa. He further testified that Ms Maphosa's business was at first operating from their home, and he did not know that there was a business partner called Chiridza, i.e., the defendant. He accepted that although the defendant and Ms Maphosa are business partners, they are also lovers who sleep together and go on holiday together. He stated that he saw the defendant in the company of Ms Maphosa and the children at Colcom Harare. However, it was put to him that the Colcom incident happened in 2023, and he said he did not diarize it because it was a horrific event. When put to him that the defendant did not know that Ms Maphosa was married, his answer was that he knew because he would pick her up in his white Amarok Twin-Cab outside the matrimonial home. Counsel put it to the plaintiff that the relationship between the defendant and Ms Maphosa began in 2012; he said he did not know that. He testified that although Ms Maphosa might not have told him that she was married, the defendant knew because plaintiff told him to keep away from a married woman.

[17] The defendant testified in his defence. He averred that he met Ms Maphosa in 2012, and they became lovers in 2013. He said during the subsistence of their relationship, he neither knew nor suspected that Ms Maphosa was a married woman. The two are also business partners, and their love relationship ended in 2023, after he had been served with a summons in this case. He said he has a child, born on 8 August 2018, with Ms Maphosa. He said the two planned to have a child together. He stated that he did not spend time with Ms Maphosa during her pregnancy and after the child was born because he is married and did not want to have complications in his marriage. He confirmed that he would meet Ms Maphosa after

February 2018, to talk about their business and the baby, but he did not know that she was married. During the subsistence of their love relationship, they travelled on a few occasions on holiday but did not take nude pictures. He did not know that Ms Maphosa had other children, except the child that she had with him. He said one day when he delivered raw materials to Ms Maphosa's workplace, and while in the bathroom he heard an altercation. When he came out of the bathroom, he saw the plaintiff being escorted out of the premises. He denied that he was in any compromising position with Ms Maphosa; they were just doing work. He testified that the plaintiff never confronted him about his relationship with Ms Maphosa before he was served with summons. Asked by his counsel whether plaintiff saw him in the company of Ms Maphosa in a public place, he said: "Not that I know of." He testified that on 29 July 2023, the plaintiff confronted him at Colcom. He said during that confrontation he was not in the company of Ms Maphosa.

[18] Under cross-examination, the defendant testified that he and Ms Maphosa went on holiday in the Eastern Highlands, and they also went together to South Africa. He said he terminated the relationship with Ms Maphosa within days after receiving the summons, that is, in March 2023. When it was put to him at that time, when the two met in March, Ms Maphosa was heavily pregnant with plaintiff's because she gave birth on 2 April 2023, his answer was that he did not realize that she was pregnant because she has a big body and wears big clothes. When put to him that during that period she was his lover and they were having sexual intercourse, how could he not have seen that she was pregnant? He maintained that he did not see that she was pregnant. He agreed that his child was born when Ms Maphosa was married to the plaintiff. It was put to him that after Ms Maphosa got married, she stayed with the plaintiff, and he continued having sexual intercourse with her. His answer was that he did not know that she was staying with another man. He testified that in October 2018, he passed through the Flat where Ms Maphosa stayed and did not see wedding pictures on the wall. When shown a photograph depicting him and other people, including the plaintiff's child with Ms Maphosa. He said that at that time, he did not know that it was the plaintiff's child; he only got to know that later.

[19] The defendant called the evidence of Ms Maphosa. See *Mbondiya v Chiridza* HH-516-25. She confirmed that she got married to the plaintiff on 2 February 2018. There is a divorce matter that is pending between her and the plaintiff, and they have not stayed together for the past three years. She testified that the defendant is the father of her first-born child, who was born on 9 August 2018, and they have been in a relationship since 2012 or 2013, until she got married. She would show the defendant the child as and when she got time. She did not disclose to the defendant that she was married.

She further said their relationship ended between March and April 2023 after the defendant had been served with summons for this case. She said the defendant was not aware of her marriage to the plaintiff. She said at the time of the marriage, both she and the plaintiff were not aware that she was pregnant. She said when she realized that she was pregnant, both she and the plaintiff knew that he was not the father, because a medical test showed that he could not bear children.

[20] Ms Maphosa testified further that she is still in a business partnership with the defendant, and the plaintiff was aware of that position. She has filed for a divorce because she had problems with the plaintiff, who would come home drunk and force her to have sexual intercourse with him. He would insult her mother, and when drunk, he would vomit and urinate on himself. She further testified that the plaintiff was financially irresponsible to the prejudice of the family.

[21] Under cross-examination, Ms. Maphosa distanced herself from some of the averments in the summary of evidence attributed to her. Her evidence was that she was told that a document, a summary of evidence, was going to be prepared, but after it was prepared, she did not see it. She said that after the encounter at her offices sometime in 2020, she informed the defendant that the plaintiff was someone who was luring her into a love relationship. She disputed the word “lie” in the summary of evidence that she would lie to the plaintiff that she would be going to week for two weeks or more when in fact she was travelling with the defendant. She said the defendant used to visit her at the Flat when she was single, but after giving birth to the first-born child, the defendant did not visit the Flat where she was now staying with the plaintiff. She said when she and the plaintiff moved to a place called

Westgate, the defendant would visit and bring dippers and other things for the baby. She turned and said the defendant would visit and not enter the house. When it was put to her that the defendant said he never visited at Westgate, she merely said "I do not know." She stated that in April 2018, she told the defendant that she was pregnant, but did not tell the plaintiff because he was impotent. She did not tell the plaintiff that she had a long-time boyfriend.

Evaluation of witnesses

[22] The plaintiff, though emotionally drained and physically tired, came across as a witness who had a good recollection of events. He was a good witness, never stating more than he knew or believed and choosing his words with care. His account was detailed, internally coherent on the core sequence, and externally corroborated. I accept his evidence without reservation. However, I am unable to find that the defendant was telling the truth. I am satisfied that the probabilities do not favour his version. The defendant's witness, Ms Maphosa, appeared to be just a hired witness to cast aspersions on the plaintiff. She sought to portray the plaintiff as a rapist, a drunkard who would vomit and urinate on himself. To draw sympathy, she at some point during her evidence pretended to have an emotional breakdown. The court saw through this gimmick and called her to order. Ms Maphosa's allegations of abuse could have carried some weight if she fell in love with the defendant during the marriage; however, she was at the time of the marriage holding a big secret of a long-standing relationship with the defendant. She got married to the plaintiff when she had a long-time lover, and was pregnant by that lover, i.e., the defendant. In her own evidence, she was having sexual intercourse with the plaintiff and the defendant interchangeably within the same period, such that she could not be sure as to who impregnated her at any moment. To cover up for her misdeeds, she alleged that the plaintiff was rapping her. If indeed the plaintiff was the monster she said he was, she could have reported him to the police for rape so that he could be held accountable. She did not do so. She is not an unsophisticated person. Her ill-characterization of the plaintiff was meant to cover her misdeeds and protect the defendant. It became clear to the court that when talking about the defendant she would be courteous and respectful, but when talking about the plaintiff, she would be discourteous and insulting. Her issue with the plaintiff is that he did

not condone her extramarital love affair with the defendant. There is no way the plaintiff would have been a happy husband when the defendant was romantically involved with his wife.

Analysis

[23] I must admit having some misgivings about the notion that the defendant and Ms Maphosa would be truthful enough to admit that their relationship progressed beyond the date of service of the summons on the defendant. In addition, I do not regard it as insignificant that after service of summons the two continued being business partners. The acceptable evidence shows that the plaintiff did not know that his wife, Ms Maphosa, was in a business partnership with the defendant. The company documents that were produced as evidence that the defendant and Ms Maphosa have always been business partners were not known by the plaintiff. In other words, the documents were, like their love relationship, hidden from the plaintiff.

[24] He genuinely believed that the firstborn child was his biological son. He registered the child in his name, raised him as his son, and took him to school. It was after the discovery of the relationship with the defendant that he took all the children for a DNA test, and the results showed that he was not the biological father of the firstborn child. The evidence by Ms Maphosa that the applicant had a zero sperm count, such that he could not bear children, was just a safe serving gimmick. There was no medical evidence placed before the court in support of this assertion. The assertion that he was treated for this condition was denied, and I am inclined to believe the plaintiff's version.

[25] If the defendant believed that Ms Maphosa was not married, he could have sought to register the child in his name, which he did not do. He knew or must have known that the child had a birth certificate; he did not bother to inquire as to who registered the child as the father. He knew or must have known that the child's surname was Mbodiya. He must have queried as to who that Mbondiya was; if he had done so, he would have known that Mbondiya was the plaintiff, Ms Maphosa's husband. In any event, if his version was true,

that he believed that Ms Maphosa was a single woman, the child's surname could have been Maphosa, his lover's maiden surname.

[26] In 2020, the plaintiff found the two, the defendant and Ms Maphosa, in a compromising circumstance at Ms. Maphosa's workplace. The defendant hid in the lavatory while Ms Maphosa sought the assistance of security guards to remove the plaintiff from the premises. I accept the plaintiff's version that he warned the defendant and urged him to stay away from Ms Maphosa because she was a married woman. He hid in the lavatory because he knew that the person who had just come was Mr Mbondiya, Ms Maphosa's husband. The contention that he was using the bathroom cannot be the truth. He was hiding from the plaintiff.

[27] Despite the plaintiff's warning, the defendant continued with his extramarital relationship with Ms Maphosa. If, in his view, Ms Maphosa was not married and had his son, there could have been no reason for them to be in a compromising situation at the office; he could have simply gone to her residence. The two, the defendant and Ms. Maphosa, despite their apparent rehearsed version, still contradicted each other on material issues. For example, the defendant said in October 2018 he passed through the Flat where Ms Maphosa stayed; however, Ms Maphosa said he did not visit the Flat after she got married to the plaintiff. In addition, he said he did not visit Westgate home, but Ms Maphosa said he would visit. When put to her, in cross examination that the defendant said he did not visit, he turned around and said he would not enter the house. In addition, if indeed he believed that Ms Maphosa was single, when picking her, he could have gone to her home instead of picking her from outside the home. Going inside the home would have given him an opportunity to see his child. Further, Ms Maphosa's first version was that her relationship with the defendant ended when she got married but soon changed to align with the defendant's version that it ended after the service of the summons.

[28] Ms Maphosa was twice pregnant, after the first-born child, the defendant must have seen her heavy with these pregnancies. In fact, when he saw her in March 2023, it was less than a month before she gave birth. To say he did not notice that she was pregnant is taking falsehood to another level. He saw her pregnant, and he must have known that the pregnancy was for another man. In addition, the plaintiff was alerted to this love relationship by the

defendant's wife. This shows that the defendant's wife knew that Ms Maphosa was married to the plaintiff, and this implies that the defendant also knew of the marriage.

[29] I am of the view that there can be no doubt that the defendant and Ms Maphosa did have sexual intercourse during the subsistence of the marriage between the plaintiff and Ms Maphosa. I find that the evidence and the probabilities of the case show that the defendant knew that his longtime lover and business partner, Ms Maphosa, got married to the plaintiff on 2 February 2018, and despite this knowledge, continued engaging in extramarital sexual intercourse with her. In the circumstances, the plaintiff discharged the *onus* of proving that the defendant knew that Ms Maphosa was married in terms of the Marriage Act, and despite this knowledge continued engaging in sexual intercourse with her. Therefore, adultery was committed, and the plaintiff is entitled to damages. See *Nyandoro v Tizirai* 2006 (1) ZLR 121 (H).

The quantum of damages the defendant is liable to pay to the plaintiff

[30] The second issue essentially refers to the amount of damages due to the plaintiff. Damages for adultery are claimable on two separate and distinct grounds: firstly, on the grounds of the injury or *contumelia* inflicted upon the plaintiff; and secondly, on the grounds of the loss of comfort, society and services of the other spouse i.e., consortium. See *Jhamba v Mugwisi* 2010 (1) ZLR 124 (H). In *Khumalo* v *Mandishona* 1996 (1) ZLR 434 (H), on p 442, the court said:

> "*Contumelia* incorporates the injury, insult, and indignity suffered by the plaintiff, whilst loss of consortium relates to the loss of comfort, society, and service of the wife as a result of the adultery committed by the defendant."

[31] It was stressed in the *Chapman* v *Chapman and Another* 1977 (4) SA 142 (E) that it is impossible to convert with any measure of precision the damage suffered through *contumelia* and loss of consortium into hard cash and secondly that comparisons with other cases are only used for finding notional boundaries within which an assessment would be reasonable; since each case must of necessity depend on its own facts.

[32] Regarding assessment of damages for adultery, in *Katsumbe* v *Buyanga* 1991 (2) ZLR 256 (HC) at p 258 the court said:

> "where a third party is shown to have intruded sexually upon a marriage and to have contributed to the breach of the duty of marital fidelity which each spouse owes the other by committing adultery with the one spouse, the courts in the absence of mitigating circumstances, should be seen, in their award of damages, to come down hard on the adulterer or adulteress … The courts should ensure, as far as is reasonably possible, that an aggrieved spouse who approaches them is not made to feel, after their award of damages, that the adulterer or adulteress has been the winner and that it would have been better for the aggrieved spouse to have taken the law into his or her own hands."

[33] In *Nyakudya* v *Washaya* 2000 (1) ZLR 653, the factors to be considered in determining the amount of damages to be awarded against a third party for adultery were summarised as follows: the character of the woman (or man) involved, the social and economic status of the plaintiff (and the defendant) whether the defendant has shown contrition and has apologized, the need for deterrent measures against the adulterer to protect the innocent spouse against contracting HIV from the errant spouse; and the level of awards in similar cases. In addition to the above, the court should also take into account whether the plaintiff has suffered lack of consortium as well as *contumelia*, or just the latter, and the decrease in the value of money. See *Khumalo v Mandishona supra.*

[34] I now turn to deal with each head in seriatim.

Contumelia

[35] As stated above, *contumelia* simply relates to the infringement of the plaintiff's right to privacy, dignity, and reputation. In *Foulds* v *Smith* 1950(1) SA 1 (A), the court stated that *contumelia* is rather a question of fact than a question of law. In *casu*, the plaintiff was informed of the extramarital relationship by the defendant's wife. She insulted and cursed the plaintiff, ordering him to reign on his wife to keep away from the defendant. It is the plaintiff's family, after learning of the relationship between the defendant and Ms Maphosa, who advised him to take the children for a DNA test. To his embarrassment, the firstborn child was found not to be his biological child. He took care of pregnancy and the child from birth. He registered the child in his name, taken him to school, and looked after him as his

own. During the subsistence of the marriage the defendant in collusion with Ms Maphosa changed the registration of the child's surname from Mbodiya to Chiridza. As a result, the school records were changed to reflect the new surname of the child. The conduct of the defendant in this regard inflicted serious injury and insult on the plaintiff.

[36] To add to the injury and insult, Ms Maphosa introduced the defendant as her boyfriend to her sister and cousin. In addition, the plaintiff cannot go to church anymore because of the shame he is living under because of the conduct of the defendant. The evidence of Tutani Mbondiya shows that the plaintiff was traumatized to the extent that he was put under suicide watch. Furthermore, the plaintiff's self-respect and humanity were assailed in the eyes of Ms Maphosa's employees, who knew that she had a lover whom she would meet at the office. In addition, the defendant had the temerity to call the plaintiff's wife as his witness to say scandalous and insulting things about the plaintiff. Ms Maphosa was the defendant's witness. She was subpoenaed at the instance of the defendant. The defendant, by calling the plaintiff's wife to be his witness, was malicious and vindictive. And to say the plaintiff wife was his longtime lover, true as it is, was insensitive and injurious to the plaintiff. To commit adultery with someone's spouse and then insult that person cannot be accepted, even in today's more open-minded society. The defendant's conduct in this matter is distasteful, and it traumatized the plaintiff. The mental anguish the plaintiff experienced is obvious. While he produced no medical proof, he testified that he is suffering from high blood pressure. I have no doubt that his health was affected by the adultery. On the facts of this case, I accept that the plaintiff's self-esteem was indeed assailed beyond measure. All the above factors are aggravating and would favour the imposition of punitive damages. See *Nyandoro v Tizirai* 2006 (1) ZLR 121 (H).

Consortium

[37] The most important factor under this head is that there should be proof of actual loss of *consortium.* In other words, the spouse should be shown to have left the matrimonial home because of the adultery. See *Khumalo v Mandishona supra*. In *Grobbelaar* v *Havenga* 1964 (3) SA 522 (N) at 525 C-E., the court, with reference to the English authorities, said that consortium means the companionship, love, affection, comfort, mutual services and sexual

intercourse, which all belong to the married state. At page 526 C of that judgment, the court stated that it is the duty of spouses to consort with each other, and a third person who intentionally causes one spouse to violate this duty commits a wrong against the other spouse. In *Peter* v *Minister of Law and Order* 1990(4) SA 6 (ECD) at 9 G-H the court pointed out that the concept of consortium is an abstraction which embraces intangibles such as loyalty and sympathy, care and affection, concern as well as the more material needs of life such as physical care, financial support, the rendering of services and the running of a common household.

[38] Although the defendant and Ms Maphosa sought to create the impression that he was not the cause of the matrimonial turbulence in the plaintiff's marriage, I found that he was the cause. It is the adultery that caused Ms Maphosa to institute divorce proceedings against the plaintiff. It is the adultery that caused the plaintiff to move out of the matrimonial home. The fact that it is the plaintiff who moved out of the matrimonial home is inconsequential. He could not have been expected to stay with a wife who was openly in a love relationship with another man. Further, it is the duty of Ms Maphosa as a spouse to reside and consort with her husband, and the defendant intentionally caused her to violate this duty. The evidence shows that the plaintiff has been desirous to mend the relationship with his wife. This is clear from the evidence of the plaintiff's cousin, Christopher Nyakata. The defendant's conduct and calling Ms Maphosa to be his witness in this matter made the possibility of a reconciliation to recede to remoteness. The fact that the defendant and Ms Maphosa's love relationship predated the marriage is of no moment. It is inconsequential. The plaintiff has, by the conduct of the defendant, lost his wife's services, assistance, comfort, society, etc. See *Pearce* v *Kevan* 1954 (3) SA 910 (N). The defendant has not shown contrition and has not apologized. Even in court he did not apologize. On the issue of the unrepentant defendant, it was held in *Chapman* v *Chapman and Anor* 1977 (4) SA (NC) 142 at p 144 that if the defendant is grossly impudent and unrepentant, that will aggravate the damages. The defendant had been grossly imprudent and unrepentant.

[39] No doubt the two were having unprotected sexual intercourse. Ms Maphosa would suffer from an STI and hide the medication so that the plaintiff would not see it. Again, no doubt the

plaintiff was exposed to STIs and the risk of contracting HIV because of their rendezvous. See *Gore v Chiware* HH-276-14. In addition, the plaintiff's marriage suffered serious turbulence, of which it will not recover, because of the actions of the defendant. The cumulative effects of all these factors are also aggravating and would favour the imposition of punitive damages.

[40] The only mitigating factor is that the morale content and character of Ms Maphosa is disconcerting. She marriages the plaintiff while she has a long-standing lover, and barely a month after the marriage, in March, she registered a company with the defendant. She does not inform her husband that she has a male business partner. She continues with her relationship with the defendant, to the extent of being in a compromising position and semi-naked at her office. I accept the plaintiff's evidence that she was taking nude pictures with the defendant and keeping these on her cell phone. She would lie to the plaintiff that she would be going to work, when in fact she would be going on holiday with the defendant. She would engage in sexual intercourse within the same period with both the plaintiff and the defendant, to the extent that she would not be sure who impregnated her. In my view this lack of character of Ms Maphosa is a debit entry in the damages to be awarded to the plaintiff.

Conclusion

[41] In my opinion the plaintiff has suffered grievously in this case. This is a case which warrants punitive damages. See *Taoneyi v Madzima* HH-18-25; *Mapiye v Mudyiwa* HH-399-18; *Chenesai Rateiwa* v *Tsitsi Venge* HB-152-11; *Muhwati* v *Nyama* 2011 (1) ZLR 634; *Judith Tikiwa* v *Makomborero Adiyolah Charlie* HH-488-14; *Makururu* v *Vori* HH-174-16. The plaintiff claims USD$10 000 for *contumelia.* The circumstances of this case are such that he is entitled to the damages he sought under this head. His self-esteem as a human being, and his reputation have been hurt and assailed. For loss of *consortium,* this court cannot ignore the low-level moral content and lack of good character of his wife. I take the view that to award him the USD$10 000 he is claiming under this head would amount to allowing him to benefit more than he is entitled to from his wife's dishonorable conduct. Under this head, he is awarded USD$5 000 in damages.

Whether or not the defendant should pay costs on an attorney-client scale.

[42] The plaintiff sought costs on a legal practitioner and client scale. The jurisprudence is that the scale of costs on an attorney and client scale is an extraordinary one, which should be reserved for cases where it can be found that a litigant conducted themselves in a clear and indubitably vexatious manner. The operative principle in determining whether to award punitive costs is whether a litigant's conduct is frivolous, vexatious or manifestly inappropriate. See *Raillings Enterprises (Pvt) Ltd v Luwo & Ors* 2020 (2) ZLR 51 (H); *Kangai v Netone Cellular (Pvt) Ltd* 2020 (1) ZLR 660 (H). The conduct of the defendant was reprehensible and extremely scandalous and must be condemned. He traumatized the plaintiff. Even at the eleventh hour, he continued in his defiance and did not apologize. This is a case for costs on a legal practitioner and client scale.

[42] In the circumstances, the plaintiff proved his case as required by the law. He is entitled to damages for adultery.

In the result, it is ordered as follows:

a) The defendant committed adultery with plaintiff's wife.
b) The defendant shall pay the plaintiff USD$10 000 damages for *contumelia.*
c) The defendant shall pay the plaintiff USD$5 000 damages for loss of *consortium.*
d) The defendant shall pay interest for the total damages of USD$15 000 at the prescribed rate from the date of the judgment to the date of final payment.
e) The defendant shall pay costs on a legal practitioner and client scale.

Dube-Tachiona & Tsvangirai, plaintiff's legal practitioners
Chatsama and Partners, defendant's legal practitioners